

I. Request

1. The Minister of Internal Administration requested the National Data Protection Commission (CNPD) to issue an opinion on the Proposal for Amendment to Ordinance No. 1513/2007, of November 29, which establishes the procedures to be adopted by security forces and services regarding lost and found items and determines the creation of the Integrated Information System on Lost and Found (hereinafter referred to as the Proposal).
2. The CNPD issues this opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of paragraph 1 of article 57, in conjunction with paragraph b) of paragraph 3 of article 58, and with paragraph 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter referred to as GDPR), in conjunction with the provisions of article 3, paragraph 2 of article 4, and paragraph a) of paragraph 1 of article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order.
3. The Proposal is accompanied by the letter Ref. S071219-202407 – GCCG, dated July 26, from the National Republican Guard, which outlines the main proposed changes.

II. Analysis

4. The Proposal under analysis aims to amend Ordinance No. 1513/2007, of November 29, which establishes the procedures to be adopted by security forces and services regarding lost and found items and determines the creation of the Integrated Information System on Lost and Found, in order to ensure greater legal protection for personal data when it concerns found items that may contain personal data, namely computer and communication equipment, or documentation relating to foreign citizens.
5. It was foreseen, in paragraph 3 of article 2, that "In no case shall the finder be a faithful custodian of personal and non-transferable documents belonging to others," now clarifying that computer and communication equipment should also be included in that quality.
6. Under the terms of article 3, when the return of the goods to their owner or equivalent has not occurred, the item must be delivered to the finder, if they have claimed it (paragraph 2). The Proposal introduces in paragraph 4 a norm that excludes this possibility regarding items that may contain personal data, namely computer and communication equipment, which is commendable, considering the amount of personal information potentially contained in these devices.
7. Regarding this paragraph, attention is drawn to what appears to be an inaccuracy. In fact, the Proposal indicates that the wording of paragraphs 5 and 6 remains unchanged. However, since article 3 of the Ordinance consists of only 5 paragraphs, it is believed that what was intended was to state that paragraph 5 will correspond to the previous paragraph 4 and paragraph 6 to the previous paragraph 5. Another interpretation would lead to the conclusion that, by altering the text of paragraph 3, the norm provided in the current paragraph 4 (exemption from the restitution norm when the claimant/finder is "a member of a security force or any other person in the service of a public or private entity whose functions include the location or recovery of lost property," which would not be understood).
8. Regarding the destination of claimed items, whose regime is provided for in article 4, the provisions of paragraph 2 are amended – now explicitly stating, regarding nominative documents issued by other States and belonging to foreign individuals, that they will be sent to the General Secretariat of the Ministry of Internal Administration when there is no accredited diplomatic representation in Portugal (paragraph 2) – and a new paragraph 5 is added, the content of which deserves applause but is insufficient.
9. It is established in paragraph 4 that "Unclaimed goods that are of no interest to the security force to which they have been delivered shall be subject to public auction annually, with the proceeds reverting to their respective social services." The newly added paragraph 5 prescribes that excluded from the

auction are "unclaimed goods that are of no interest to the security force to which they have been delivered, capable of containing personal data, namely computer and communication equipment, which must be destroyed, with the corresponding record being prepared" (our emphasis).

10. Although this norm is welcomed, it does not safeguard all possible situations. In fact, nothing is said about what happens to items that contain personal data, namely computer and communication equipment, when they are of interest to the security force to which they have been delivered. Since the items contain personal data, it is necessary to safeguard the confidentiality of that data. Nothing is mentioned regarding the destination of the items if they are deemed useful for the security forces, namely, whether the items will be utilized for future uses by the security forces and, if so, how it will be ensured that there is no access to that data, which should be provided for in the Ordinance. The CNPD notes that the deletion of data constitutes, under the terms of paragraph 2) of article 4, a processing operation that, therefore, falls under the General Data Protection Regulation.

III. Conclusion

11. With the reasons outlined above, the CNPD recommends that consideration be given to the inclusion of norms regulating the destination of items that cannot be auctioned due to containing personal data but may be of interest to the security forces.

Lisbon, April 15, 2025

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